

WOLFIE — Legal & Policy Framework (V1)

Project Legal Positioning

WOLFIE is positioned legally as:

A technology platform that connects customers, independent delivery drivers, and restaurants.

WOLFIE is NOT:

- A restaurant
- A food manufacturer
- A direct employer of drivers
- A transportation carrier

This positioning is critical for limiting liability and maintaining the independent contractor model.

1. TERMS OF SERVICE — FINAL STRATEGY

Account Eligibility

Recommended policy:

- Users must be at least 18 years old.
- Users under 18 may only use the platform with the involvement, supervision, and consent of a parent or legal guardian.

Reason:

- Stronger enforceability of digital contracts.
 - Better alignment with U.S. platform standards.
 - Reduces legal exposure involving minors.
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Payment Methods

Approved payment methods:

- Credit/Debit Cards
- Digital Wallets (future)

Removed:

- Cash on Delivery (COD)

Reason for removing COD:

- High fraud risk
 - Fake orders
 - Charge disputes
 - Driver safety concerns
 - Operational complexity
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Order Cancellation Policy

Recommended structure:

Before Restaurant Acceptance

- Customer may cancel freely.
- Full refund.

After Restaurant Acceptance

- Refund not guaranteed.
- Partial charges may apply.

After Driver Pickup

- Customer usually charged fully.
 - Refund only if issue qualifies under Refund Policy.
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Arbitration Clause

Recommended:

Add a binding arbitration clause.

Purpose:

- Reduces lawsuit exposure
 - Prevents costly court litigation
 - Protects against class-action lawsuits
 - Standard practice among major U.S. platforms
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Limitation of Liability

Recommended language direction:

WOLFIE acts solely as a marketplace and technology intermediary.

Restaurants remain responsible for:

- Food quality
- Food safety
- Allergens
- Preparation accuracy

Drivers remain responsible for:

- Vehicle operation
 - Safe delivery
 - Traffic violations
 - Insurance obligations
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2. DRIVER AGREEMENT — FINAL STRATEGY

Driver Classification

Drivers are:

Independent Contractors

NOT:

- Employees
 - Agents
 - Representatives of WOLFIE
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Driver Freedom

Drivers may:

- Choose when to work
- Reject delivery offers
- Work for competing platforms
- Use their own equipment and vehicles

There are:

- No minimum working hours
 - No mandatory schedules
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Account Suspension

IMPORTANT:

Avoid wording like:

- “Drivers will be punished for rejecting orders.”

Recommended wording:

Excessive failure to complete accepted deliveries, repeated abuse, fraud, or platform misuse may affect continued access to the platform.

Reason:

- Helps preserve independent contractor classification.
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Driver Financial Responsibility

Drivers are responsible for:

- Fuel
 - Vehicle maintenance
 - Insurance
 - Taxes
 - Traffic tickets
 - Mobile device/data plans
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Tips Policy

Updated recommendation:

Customer tips belong to the driver once delivery is completed.

Tips should NOT normally be reclaimed except:

- Fraud
- Duplicate payments
- Legal requirements

Reason:

- U.S. tip laws are sensitive.
 - Prevents labor disputes.
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Background Checks

Current policy:

- Optional during early MVP stage

Future scaling policy:

- Criminal and identity verification recommended before scaling operations
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3. RESTAURANT AGREEMENT — FINAL STRATEGY

Commission Structure

Commission may:

- Vary by restaurant
- Vary by partnership tier
- Change with promotional agreements

Recommended range:

- 10%–15%
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Restaurant Responsibilities

Restaurants are responsible for:

- Menu accuracy
 - Pricing accuracy
 - Food preparation
 - Food safety compliance
 - Packaging quality
 - Allergens disclosure
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Refund Allocation

Refund responsibility depends on fault source:

Restaurant Fault

Examples:

- Wrong item
- Missing item
- Poor food quality

Restaurant may bear refund responsibility.

Driver Fault

Examples:

- Delivery mishandling
- Excessive delay caused by driver

Driver-related adjustments may apply.

Platform Fault

Examples:

- Technical payment issue
- System pricing error

WOLFIE may issue app credits or refunds.

Exclusivity

Policy:

Restaurants are free to work with competing platforms.

No exclusivity requirement.

Reason:

- Better restaurant adoption
 - Lower onboarding resistance
 - Industry-standard practice
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4. PRIVACY POLICY — FINAL STRATEGY

Data Collected

WOLFIE may collect:

- Name
- Email
- Phone number
- GPS location
- Device information
- Payment metadata
- Chat messages
- Order history
- Usage analytics

Purpose of Data Usage

Data may be used for:

- Order fulfillment
- Driver dispatching
- Fraud prevention
- Pricing optimization
- Analytics
- AI improvements
- Customer support
- Marketing communications

Marketing Communications

WOLFIE may send:

- Promotional emails
- SMS notifications
- Push notifications

Users may opt out where legally required.

Data Sales Policy

Recommended policy:

WOLFIE does not sell personal data.

Exception:

- Data transfer may occur during mergers, acquisitions, or sale of company assets.

GPS Tracking Disclosure

Important:

Explicitly disclose:

- Real-time driver tracking
- Delivery tracking
- Background location usage during active deliveries

This is legally important.

5. REFUND POLICY — FINAL STRATEGY

Full Refund Situations

Examples:

- Order never delivered
 - Duplicate charge
 - Restaurant closed
 - Major delivery failure
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Partial Refund Situations

Examples:

- Missing items
 - Incorrect items
 - Moderate quality issues
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App Credits

Recommended usage:

WOLFIE may issue:

- App credits
- Promotional balance
- Partial wallet compensation

Instead of cash refunds in some situations.

Refund Window

Recommended:

Customers must report issues within:

- 24 hours of delivery
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Fraud Protection

Recommended clause:

WOLFIE reserves the right to:

- Deny abusive refund requests
 - Limit repeated compensation claims
 - Investigate suspicious activity
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6. COMMUNITY STANDARDS & PLATFORM CONDUCT POLICY

Customer Prohibited Conduct

Customers may not:

- Place fake orders
- Abuse refunds or chargebacks
- Harass drivers or restaurants
- Use stolen payment methods
- Create duplicate or fraudulent accounts
- Manipulate promotions or referral systems
- Post false reviews intentionally
- Interfere with deliveries

WOLFIE reserves the right to:

- Suspend accounts
 - Restrict platform access
 - Refuse refunds
 - Investigate suspicious behavior
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Driver Prohibited Conduct

Drivers may not:

- Share accounts
- Use fake GPS or spoofing tools
- Steal or tamper with orders
- Harass customers or restaurants
- Operate vehicles unsafely
- Accept deliveries without intent to complete them
- Manipulate delivery timing or platform systems

WOLFIE may suspend or terminate platform access for repeated misconduct, fraud, unsafe behavior, or abuse.

Restaurant Prohibited Conduct

Restaurants may not:

- Upload misleading menus or pricing
- Use inaccurate food images intentionally
- Prepare unsafe or expired food
- Manipulate preparation times dishonestly
- Abuse promotional systems
- Interfere with platform operations

Repeated violations may result in:

- Reduced visibility
 - Suspension
 - Removal from the platform
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7. INTELLECTUAL PROPERTY POLICY

Ownership

All rights related to WOLFIE are owned by the company, including:

- WOLFIE name
 - Branding
 - Logos
 - Platform interface
 - Mobile applications
 - Website design
 - Backend systems
 - Pricing systems
 - Matching algorithms
 - AI systems
 - Analytics systems
 - Source code
 - Databases
 - Visual assets
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Restrictions

Users may not:

- Copy the platform
- Reverse engineer the software
- Resell platform technology
- Reproduce branding without permission
- Use automated scraping tools

- Exploit platform systems for competitive purposes
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Limited License

WOLFIE grants users a limited, non-transferable, revocable license to access and use the platform solely for personal or authorized business use.

8. DRIVER EARNINGS DISCLAIMER

No Guaranteed Earnings

WOLFIE does not guarantee:

- Minimum earnings
- Delivery volume
- Hourly income
- Customer demand
- Order frequency

Driver earnings depend on:

- Market demand
 - Availability
 - Geographic area
 - Delivery acceptance
 - Delivery completion
 - Customer activity
 - Platform conditions
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Promotional Estimates

Any earnings examples, projections, or promotional estimates displayed by WOLFIE are illustrative only and do not constitute guaranteed income.

9. FORCE MAJEURE POLICY

WOLFIE shall not be liable for delays, failures, interruptions, or damages caused by events beyond reasonable control, including:

- Internet outages
- Server failures
- Cloud provider disruptions
- GPS or mapping failures

- Payment processor outages
- Severe weather
- Natural disasters
- Government actions
- Labor strikes
- Civil unrest
- Wars
- Cyberattacks
- Infrastructure failures

During such events, certain services may become temporarily unavailable or delayed.

HIGH PRIORITY LEGAL ITEMS STILL MISSING

You Still Need

1. Business Entity

Recommended:

- LLC in the U.S.
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2. Insurance

Recommended minimum:

- General liability insurance
 - Commercial platform coverage
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3. Tax Structure

Future requirements:

- 1099 handling
 - Accounting system
 - Revenue reporting
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4. DMCA / IP Policy

Needed later if:

- User content
 - Restaurant uploads
 - Social features
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STRATEGIC ASSESSMENT

Current legal direction is now significantly stronger and aligns more closely with:

- Uber Eats
- DoorDash
- Grubhub
- Instacart

Key improvements made:

- Removed Cash on Delivery
- Reduced employee-classification risk
- Improved liability separation
- Added arbitration strategy
- Corrected tips handling
- Improved cancellation structure
- Added under-18 parental consent structure

Remaining challenge:

The largest future risk remains:

- Driver classification law
- Insurance liability
- Multi-state regulatory compliance

These become critical only after meaningful scale.

FILE STRUCTURE — PRODUCTION LEGAL DOCUMENTS

The following files should exist as separate production documents inside WOLFIE:

1. terms-of-service.md
 2. privacy-policy.md
 3. driver-agreement.md
 4. restaurant-partner-agreement.md
 5. refund-cancellation-policy.md
 6. community-guidelines.md
 7. earnings-disclaimer.md
 8. intellectual-property-policy.md
 9. ai-automation-policy.md
 10. dmca-policy.md
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1. terms-of-service.md

Main Sections

- Introduction
 - Acceptance of Terms
 - Eligibility Requirements
 - User Accounts
 - Payment Terms
 - Dynamic Pricing Disclosure
 - Automated Systems Disclosure
 - Order Placement
 - Cancellations
 - Refund Limitations
 - Platform Availability
 - Third-Party Services
 - Arbitration Clause
 - Limitation of Liability
 - Indemnification
 - Account Suspension
 - Intellectual Property
 - Governing Law
 - Termination
 - Contact Information
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2. privacy-policy.md

Main Sections

- Information Collected
 - GPS & Location Tracking
 - Payment Metadata
 - Device & Analytics Data
 - Chat & Communication Data
 - Marketing Communications
 - AI & Analytics Usage
 - Data Retention
 - Security Measures
 - User Rights
 - Data Transfers
 - Sale or Merger Disclosure
 - Cookies & Tracking Technologies
 - Contact Information
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3. driver-agreement.md

Main Sections

- Independent Contractor Status
 - No Employment Relationship
 - Driver Eligibility
 - Driver Responsibilities
 - Vehicle & Insurance Requirements
 - Earnings Disclaimer
 - Dispatch System Disclosure
 - AI Matching Systems
 - Tips Policy
 - Taxes & Expenses
 - Account Suspension Rules
 - Fraud Prevention
 - Safety Expectations
 - Arbitration
 - Liability Limitations
 - Termination
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4. restaurant-partner-agreement.md

Main Sections

- Partnership Structure
 - Commission Structure
 - Menu Accuracy Requirements
 - Food Safety Responsibilities
 - Pricing Responsibilities
 - Refund Allocation Rules
 - Promotional Participation
 - Delivery Coordination
 - Restaurant Conduct Standards
 - Suspension Rights
 - Data & Analytics Usage
 - Intellectual Property
 - Limitation of Liability
 - Termination
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5. refund-cancellation-policy.md

Main Sections

- Eligible Refund Situations

- Non-Refundable Situations
 - Partial Refunds
 - App Credits
 - Cancellation Windows
 - Late Delivery Handling
 - Duplicate Charges
 - Fraudulent Claims
 - Investigation Rights
 - Refund Timelines
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6. community-guidelines.md

Main Sections

Customer Rules

- Fraud
- Harassment
- Abuse
- Fake Orders
- Payment Abuse

Driver Rules

- Unsafe Driving
- GPS Manipulation
- Theft
- Harassment
- Multi-Account Abuse

Restaurant Rules

- Misleading Menus
- Fake Pricing
- Unsafe Food
- Manipulation

Enforcement

- Warnings
 - Suspensions
 - Permanent Bans
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7. earnings-disclaimer.md

Main Sections

- No Guaranteed Income
 - Market-Based Earnings
 - Demand Variability
 - Promotional Estimates Disclaimer
 - Independent Contractor Status
 - Expense Responsibilities
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8. intellectual-property-policy.md

Main Sections

- Ownership of WOLFIE Systems
 - Protection of AI Systems
 - Pricing Engine Ownership
 - Smart Dispatch Ownership
 - Branding & Trademark Rights
 - Copyright Notice
 - Reverse Engineering Restrictions
 - Scraping Restrictions
 - Commercial Misuse Restrictions
 - License Terms
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9. ai-automation-policy.md

Main Sections

- Use of Automated Systems
 - Dynamic Pricing Systems
 - AI Dispatch & Matching
 - Fraud Detection Systems
 - Risk Scoring Systems
 - ETA Prediction Systems
 - Recommendation Systems
 - Automated Decision Limitations
 - Platform Optimization Systems
 - Transparency Notice
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10. dmca-policy.md

Main Sections

- Copyright Complaints
 - Removal Requests
 - Counter Notifications
 - Repeat Infringer Policy
 - Content Ownership
 - Intellectual Property Contact
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FINAL STRATEGIC POSITIONING

WOLFIE should legally position itself as:

A technology-enabled marketplace platform using proprietary automation, dispatch, pricing, and analytics systems to facilitate interactions between independent parties.

This positioning is intentionally aligned with structures commonly used by:

- Uber
- Uber Eats
- DoorDash
- Instacart
- Grubhub

while preserving flexibility for future AI systems, social dining expansion, analytics products, and marketplace scaling.